

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JORDAN BENNETT,

Plaintiff,

-against-

CITY OF NEW YORK, NYPD DETECTIVE WARREN
CORDERO, Shield No. 1631, and NYPD POLICE
OFFICERS JOHN AND JANE DOES

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 21, 2022

Respectfully submitted,

Caitlin Robin

Caitlin Robin, Esq.
CAITLIN ROBIN & ASSOCIATES, PLLC
Attorneys for the Plaintiff
JORDAN BENNETT
30 Broad Street, Suite 702
New York, New York 10004
(646) 524-6026

TO: THE CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

NYPD DETECTIVE WARREN CORDERO, Shield No. 1631
1 Police Plaza
New York, NY 10038

NYPD POLICE OFFICERS JOHN AND JANE DOES
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
JORDAN BENNETT,

Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

CITY OF NEW YORK, NYPD DETECTIVE WARREN
CORDERO, Shield No. 1631, and NYPD POLICE
OFFICERS JOHN AND JANE DOES

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JORDAN BENNETT, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 16, 2020, at approximately 5:30 P.M. inside of 15-00 Hazen Street East, State of New York, Plaintiff JORDAN BENNETT was subject to unlawful stop, question, frisk, search, false arrest and false imprisonment by Defendants NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, and NYPD OFFICERS JOHN AND JANE DOES. Plaintiff spent approximately twenty-four (24) hours unlawfully in police custody at the 45th Precinct and Bronx Central Booking. Thereafter, Defendants denied Plaintiff the right of fair trial by forwarding false information to the Bronx County District Attorney's Office. Plaintiff was subjected to incarceration at Manhattan Detention Complex for a period of twenty-four (24) hours as a result. All charges against Plaintiff were subsequently dismissed and sealed on or about November 30, 2021. Plaintiff was deprived of his constitutional rights when the Defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, falsely imprisoned and denied Plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JORDAN BENNETT is a resident of the State of New York.
3. NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, was assigned to the Bronx Central Robbery Squad of the New York City Police Department (NYPD).

5. NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, is being sued in his individual and official capacities.

6. NYPD POLICE OFFICER JOHN DOES are and were at all times relevant herein, officers, employees and agents of the New York City Police Department.

7. NYPD POLICE OFFICERS JOHN DOES are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties and officers, employees, and agents of the New York City Police Department.

9. At all times relevant hereto, Defendant CITY OF NEW YORK, operated, maintained, managed, supervised, and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of the police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On June 16, 2020 at approximately 5:30 P.M., Plaintiff JORDAN BENNETT was lawfully present inside of the North Infirmity Command, located at 15-00 Hazen Street, East Elmhurst, State of New York, after having just been released from Rikers Island Correctional Facility.

13. At the aforementioned time and place, Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, acting in concert with Defendants NYPD POLICE OFFICERS JOHN AND JANE DOES, unlawfully stopped and searched Plaintiff without probable cause.

14. At no point in time did the Defendants find any contraband on Plaintiff's person.
15. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, acting in concert with Defendants NYPD POLICE OFFICERS JOHN AND JANE DOES, then restrained Plaintiff with metal handcuffs and unlawfully arrested Plaintiff for no valid reason, claiming that Plaintiff had just committed a robbery despite having been detained at Rikers Island Correctional Facility since March 2020.
16. At no point did Plaintiff resist arrest in any way.
17. Some of the police officer defendants stood around and witnessed the violations of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officer from violating Plaintiff's rights.
18. At no time prior to being stopped by the officers did Plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe Plaintiff had committed or was committing a crime.
19. Defendants then transported Plaintiff to the 45th Precinct, 2877 Barkley Avenue, County of Bronx, State of New York, where Plaintiff was fingerprinted, photographed and unlawfully detained in a holding cell, and then to Bronx Central Booking, located at 215 E 161st Street, County of Bronx, State of New York.
20. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, falsely stated to the Bronx County District Attorney's Office that Plaintiff had committed the crimes of Robbery in the First Degree, Robbery in the Third Degree, Petit Larceny and Criminal Possession of a Weapon in the Fourth Degree, among others, despite knowing that he lacked a legal and factual basis to allege that Plaintiff committed any such crime.
21. After approximately twenty-four (24) hours in police custody, Plaintiff was arraigned on criminal charges for Robbery in the First Degree, Robbery in the Second Degree, Robbery in the Third Degree, Criminal Possession of a Weapon in the Fourth Degree and Menacing in the Third Degree in Bronx County Supreme Court, Criminal Term. Bail was set in the amount of \$10,000 (ten thousand dollars).
22. Plaintiff was then unlawfully detained at Manhattan Detention Complex for approximately 24 (twenty-four) hours before being bailed out.
23. Thereafter, the criminal charges against Plaintiff were dismissed and sealed on November 30, 2021.
24. The unlawful stop, question, frisk, search, seizure, assault, battery, false arrest, false imprisonment and deprivation of the right to a fair trial by the named Defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Negligence**

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.

26. Defendants owed a duty of care to plaintiff.

27. As a direct and proximate cause of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

28. All of the foregoing occurred without any fault or provocation by Plaintiff.

29. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

31. As a direct and proximate result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SECOND CAUSE OF ACTION**Unlawful Stop, Question and Frisk**

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

33. The illegal approach, pursuit, stop, questioning, and frisk employed by Defendants herein terminated the plaintiff's freedom of movement through means intentionally applied

34. The conduct of Defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

35. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

37. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

38. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

39. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

40. The illegal approach, pursuit, stop, and search of Plaintiff's person employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

41. Defendants lacked probable cause to search Plaintiff.

42. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

43. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

44. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

45. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff, and in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, the Plaintiff did not consent to the confinement and confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION **Failure to Intervene**

52. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

53. The defendants that did not physically touch Plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

54. Defendants failed to intervene to prevent the unlawful conduct described herein.

55. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

56. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Denial of Right to Fair Trial/Due Process

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

61. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors of the Bronx County District Attorney's Office.

62. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

63. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

64. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendant NYPD WARREN CORDERO, Shield No. 1631, violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

65. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

66. Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, was at all times agent, servant, and employee acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a direct and proximate result the conduct of Defendant NYPD DETECTIVE WARREN CORDERO, Shield No. 1631, Plaintiff suffered injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

70. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

71. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

72. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

76. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

77. By the actions described herein, Defendants, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

82. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

84. As a direct and proximate result of the aforementioned conduct of the Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

JURY DEMAND

85. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff JORDAN BENNET demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
March 21, 2022

Respectfully submitted,

Caitlin Robin

Caitlin Robin, Esq.

CAITLIN ROBIN & ASSOCIATES, PLLC

Attorneys for the Plaintiff

JORDAN BENNETT

30 Broad Street, Suite 702

New York, New York 10004

(646) 524-6026

TO: THE CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

NYPD DETECTIVE WARREN CORDERO, Shield No. 1631
1 Police Plaza
New York, NY 10038

NYPD POLICE OFFICERS JOHN AND JANE DOES
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JORDAN BENNETT,

Plaintiff,

-against-

CITY OF NEW YORK, NYPD DETECTIVE WARREN
CORDERO, Shield No. 1631, and NYPD POLICE
OFFICERS JOHN AND JANE DOES

Defendants.

**ATTORNEY VERIFICATION
BY AFFIRMATION**

Index No.:

----- X

CAITLIN ROBIN, ESQ., being duly sworn deposes and says:

1. I am an attorney duly admitted to practice before the Courts of the State of New York and affirm the following to be true under penalties of perjury.

2. I am a member with Caitlin Robin & Associates, PLLC, attorneys for the Plaintiff, JORDAN BENNETT. I have read the annexed Summons and Complaint and know the contents thereof, and the same are true to my knowledge and belief, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records and other pertinent information contained in my files.

3. I make the foregoing affirmation instead of Plaintiff, JORDAN BENNETT, because Plaintiff resides outside of the county wherein your affirmant maintains offices.

DATED: New York, New York

March 21, 2022

Respectfully submitted,

Caitlin Robin

Caitlin Robin, Esq.

CAITLIN ROBIN & ASSOCIATES, PLLC

Attorneys for the Plaintiff

JORDAN BENNETT

30 Broad Street, Suite 702

New York, New York 10004

(646) 524-6026

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SUMMONS AND VERIFIED COMPLAINT

CAITLIN ROBIN & ASSOCIATES PLLC
Attorneys for Plaintiff
JORDAN BENNETT
30 Broad Street, Suite 702
New York, NY 10004
(646) 524-6026
